

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 714

BY ENVIRONMENT, ENERGY AND TECHNOLOGY COMMITTEE

AN ACT

RELATING TO HAZARDOUS WASTE; REPEALING CHAPTER 58, TITLE 39, IDAHO CODE, RELATING TO HAZARDOUS WASTE FACILITY SITING; AMENDING SECTION 39-4402, IDAHO CODE, TO PROVIDE LEGISLATIVE INTENT AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 39-4403, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE TERMS; AMENDING SECTION 39-4406, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE DIRECTOR OF THE DEPARTMENT OF ENVIRONMENTAL QUALITY; AMENDING SECTION 39-4408, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE UNAUTHORIZED TREATMENT, STORAGE, RELEASE, USE, OR DISPOSAL OF HAZARDOUS WASTE; AMENDING SECTION 39-4409, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE PERMIT REQUIRED FOR HAZARDOUS WASTE TREATMENT, STORAGE, OR DISPOSAL FACILITIES; AMENDING SECTION 39-4411, IDAHO CODE, TO REVISE PROVISIONS REGARDING RECORDS, REPORTING, AND MONITORING; AMENDING SECTION 39-4412, IDAHO CODE, TO REVISE PROVISIONS REGARDING INSPECTIONS AND RIGHT OF ENTRY; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4433, IDAHO CODE, TO REQUIRE SITING LICENSES AND TO PROVIDE EXEMPTIONS; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4434, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE SITING LICENSE APPLICATION AND FEE; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4435, IDAHO CODE, TO ESTABLISH MINIMUM SITING CRITERIA FOR HAZARDOUS WASTE FACILITIES; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4436, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE DUTIES OF THE DIRECTOR OF THE DEPARTMENT OF ENVIRONMENTAL QUALITY UPON RECEIPT OF AN APPLICATION; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4437, IDAHO CODE, TO PROVIDE FOR THE ESTABLISHMENT AND ORGANIZATION OF SITE REVIEW PANELS; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4438, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE DUTIES OF A SITE REVIEW PANEL; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4439, IDAHO CODE, TO PROHIBIT LOCAL RESTRICTIONS ON HAZARDOUS WASTE FACILITIES; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4440, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE CERTIFICATION OF A CITY, COUNTY, OR HEALTH DISTRICT; AMENDING CHAPTER 44, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-4441, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE REMEDY FOR DEVALUATION OF PROPERTY CAUSED BY AN APPROVED FACILITY; AMENDING SECTION 39-7402A, IDAHO CODE, TO REVISE A PROVISION REGARDING EXCLUDED FACILITIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 58, Title 39, Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Section 39-4402, Idaho Code, be, and the same is hereby amended to read as follows:

39-4402. LEGISLATIVE FINDINGS AND, PURPOSES, AND INTENT. (1) The legislature of the State of Idaho finds:

(a) That continuing technological progress, increases in manufacturing, and the abatement of air and water pollution have resulted in ever-increasing quantities of hazardous waste;

(b) That the public health and safety, and the environment, are threatened when hazardous wastes are not managed in an environmentally sound manner;

(c) That the knowledge and technology necessary for alleviating adverse health, environmental, and aesthetic impacts resulting from current hazardous waste management and disposal practices are generally available; and

(d) That the problem of proper management of hazardous waste has become a matter of great statewide concern.

(2) Therefore, it is hereby declared that the purposes of this ~~act~~ chapter are:

(a) To protect the public health and safety, the health of living organisms, and the environment from the effects of the improper, inadequate, or unsound management of hazardous waste;

(b) To establish a program to track and control hazardous wastes from the time they are generated through transportation, treatment, storage, and disposal; and

(c) To assure the safe and adequate management of hazardous wastes within this state.

(3) It is the intent of the legislature that the site licensing process provided for by this chapter not duplicate processes otherwise provided for by state or federal law. The site licensing procedure provided by sections 39-4433 through 39-4441, Idaho Code, is intended to be a preliminary, general review that does not include the type of specific, detailed technical information required for the hazardous waste management act permit process provided for by section 39-4409, Idaho Code.

SECTION 3. That Section 39-4403, Idaho Code, be, and the same is hereby amended to read as follows:

39-4403. DEFINITIONS. As used in this chapter:

(1) "Board" means the Idaho board of environmental quality.

(2) "Commercial hazardous waste facility or site" means any hazardous waste facility whose primary business is the treatment, storage, or disposal, for a fee or other consideration, of hazardous waste generated offsite by generators other than the owner and operator of the facility.

(3) "Department" means the Idaho department of environmental quality.

(4) "Designated facility" means a hazardous waste treatment, storage, or disposal facility that has received a permit, has interim status under, or is otherwise permitted pursuant to 42 U.S.C. 6901 et seq.

~~(4)~~ (5) "Director" means the director of the Idaho department of environmental quality or the director's authorized agent.

~~(5)~~ (6) "Disposal" means the discharge, deposit, injection, dumping, spilling, leaking, or placing of any hazardous waste into or on any land or water so that such hazardous waste or any constituent thereof may enter the environment or be emitted into the air or discharged into any waters, including ground waters.

(7) "Disposal facility" means a facility or a part thereof where the disposal of hazardous waste will remain after closure of the facility.

~~(6)~~ (8) "Gate ton" means the weight, in tons (2,000 pounds/ton), of waste material received at a facility. This weight does not include any subsequent changes to the weight resulting from the management of the waste by the facility.

~~(7)~~ (9) "Generator" means any person, who, by virtue of ownership, management, or control, is responsible for causing or allowing to be caused the creation of a hazardous waste.

~~(8)~~ (10) "Hazardous waste" means a waste or combination of wastes of a solid, liquid, semisolid, or contained gaseous form which, because of its quantity, concentration or characteristics (physical, chemical or biological) may:

(a) Cause or significantly contribute to an increase in deaths or an increase in serious, irreversible or incapacitating reversible illnesses; or

(b) Pose a substantial threat to human health or to the environment if improperly treated, stored, disposed of, or managed. Such wastes include, but are not limited to, materials which are toxic, corrosive, ~~ignitable~~ ignitable, or reactive, or materials which may have mutagenic, teratogenic, or carcinogenic properties but do not include solid or dissolved material in domestic sewage, or solid or dissolved materials in irrigation return flows or industrial discharges which are point sources subject to national pollution discharge elimination system permits under the federal water pollution control act, as amended, 33 U.S.C., section 1251 et seq., or source, special nuclear, or byproduct material as defined by the atomic energy act of 1954, as amended, 42 U.S.C., section 2011 et seq.

~~(9)~~ (11) "Hazardous waste management" means the systematic control of the collection, source separation, storage, treatment, transportation, processing, and disposal of hazardous wastes.

~~(10)~~ (12) "Hazardous waste facility or site" means any property, structure, or ancillary equipment intended or used for the transportation, treatment, storage, or disposal of hazardous wastes.

~~(11)~~ (13) "Injection" means the subsurface emplacement of free liquids.

(14) "Major modification" means any material and substantial alteration, expansion, or addition to the facility or an activity conducted at a facility after a siting license has been issued that warrants an application to be submitted to the department to determine whether the license's conditions need to be amended. The term may be further defined by rule, subject to legislative approval.

~~(12)~~ (15) "Manifest" means a form used for identifying the quantity, composition, origin, routing, waste identification code(s), and destination of hazardous waste during any transportation from the point of generation to the point of treatment, storage, or disposal.

~~(13)~~ (16) "Manifested waste" means waste which at the point of origin or generation is required to be manifested for transportation in a manner similar to that of the federal uniform hazardous waste manifest or by other manifest requirements designed to assure proper treatment, storage, and disposal of such waste.

(17) "On-site" means on the same or geographically contiguous property that may be divided by a public or private right-of-way if the entrance and exit between the pieces of property are at a crossroads intersection and access is by crossing rather than going along the right-of-way. Noncontiguous pieces of property owned by the same person but connected by a right-of-way that the owner controls and to which the public does not have access shall be considered on-site property.

(18) "Operator" means the person responsible for the overall operation of a hazardous waste facility authorized to operate pursuant to this chapter.

(19) "Panel" means a site review panel established pursuant to section 39-4437, Idaho Code.

~~(14)~~ (20) "PCB waste" means any waste or waste item which is not included in the definition of "hazardous waste" and which is contaminated with polychlorinated biphenyls.

~~(15)~~ (21) "Person" means any individual, association, partnership, firm, joint stock company, trust, estate, political subdivision, public or private corporation, state or federal governmental department, agency, or instrumentality, or any other legal entity which is recognized by law as the subject of rights and duties.

~~(16)~~ (22) "RCRA" means the resource conservation and recovery act of 1976 as amended from time to time.

~~(17)~~ (23) "Restricted hazardous waste" means a waste or combination of wastes regulated as land disposal restricted pursuant to federal statutes and regulations, including 40 CFR part 268. Restricted hazardous waste also includes byproduct, source, special nuclear materials or devices or equipment, except as provided below, utilizing such materials regulated under the federal atomic energy act of 1954, as amended. Restricted hazardous waste shall not include radiologically contaminated waste materials from "Formerly Utilized Sites Remedial Action Program (FUSRAP)" sites administered by the United States army corps of engineers or materials that have been exempted or released from radiological control or regulation under the atomic energy act of 1954, as amended, to be disposed of in a commercial hazardous waste facility as regulated pursuant to the rules, permit requirements, and acceptance criteria provided for by this chapter.

~~(18)~~ (24) "Storage" means the containment of hazardous wastes, on a temporary basis or for a period of years, in such a manner as not to constitute disposal of such hazardous wastes holding of hazardous waste for a temporary period, at the end of which the hazardous waste is treated, disposed of, or stored elsewhere.

(25) "Storage facility" means a facility or a part thereof where hazardous waste is subject to storage.

~~(19)~~ (26) "Transportation" means the movement of any hazardous waste ~~to or from a hazardous waste facility or site~~ from a hazardous waste facility or site by air, rail, highway, or water.

~~(20)~~ (27) "Transporter" means any person who transports a hazardous waste to or from a hazardous waste facility or site engaged in the off-site transportation of hazardous waste.

~~(21)~~ (28) "Treatment" means any method, technique, or process, including neutralization, which is designed not to be an integral part of a production process, but which is rather designed to change the physical, chemical, or biological character or composition of any hazardous waste prior to storage or final disposal so as to:

(a) ~~neutralize~~ Neutralize such waste ~~or so as to render;~~

(b) Render such waste:

(i) ~~nonhazardous~~ Nonhazardous or less hazardous;

(ii) ~~safer~~ Safer to transport, store, or dispose of; or

(iii) ~~amenable for recovery,~~ amenable for storage or reduced in volume. Such term includes any activity or processing designed to change the physical form or chemical composition of hazardous waste so as to render it nonhazardous. Amenable for recovery or storage;

(c) Reduce such waste in volume; or

(d) Recover energy or material resources from such waste.

~~(22)~~ (29) "Waste" means any solid, semisolid, liquid, or contained gaseous material for which no reasonable use or reuse is intended or which is intended to be discarded.

SECTION 4. That Section 39-4406, Idaho Code, be, and the same is hereby amended to read as follows:

39-4406. GENERAL POWERS AND DUTIES OF DIRECTOR. The director:

(1) Shall take all actions not inconsistent with this chapter as are necessary and feasible to enable the department to assume and continue primacy over hazardous waste management, pursuant to RCRA;

(2) May conduct and publish studies of hazardous waste management in this state; and

~~(3) Shall develop, publish, and revise as necessary a plan for the safe and effective management of hazardous wastes within this state. Such a plan may identify those locations in the state which are not suitable for the establishment of hazardous waste treatment or disposal facilities or sites;~~

~~(4)~~ (3) Shall exercise all powers and discharge all duties expressed in or implied from the other sections of this chapter.

SECTION 5. That Section 39-4408, Idaho Code, be, and the same is hereby amended to read as follows:

39-4408. UNAUTHORIZED TREATMENT, STORAGE, RELEASE, USE OR DISPOSAL OF HAZARDOUS WASTE PROHIBITED. (1) No person shall treat or store hazardous waste, nor shall any person discharge, incinerate, release, spill, place, or dispose any hazardous waste in such a manner that the waste, or any constituent thereof, may enter the environment, unless the department has issued said person a permit or a variance as required for the specific activity involved or exempted the activity from permit requirements.

(2) ~~Effective six (6) months after the effective date of this provision,~~ nonhazardous Nonhazardous liquids shall not be disposed of in a land-

1 fill for which a permit is required under section 39-4409, Idaho Code, or
 2 which is operating pursuant to interim status granted under section 3005(c)
 3 of RCRA, unless the owner or operator of the landfill demonstrates to the di-
 4 rector that:

- 5 (a) The only reasonable alternative is placement in a landfill or
- 6 unlined surface impoundment which contains or may contain hazardous
- 7 waste; and
- 8 (b) Placement in the owner or operator's landfill will not present a
- 9 risk of contamination of any existing or potential underground source
- 10 of drinking water.
- 11 (3) Waste or used oil or other material which is contaminated or mixed
- 12 with any hazardous waste, other than wastes identified solely on the basis of
- 13 ignitibility, shall not be used for dust suppression or road treatment.
- 14 (4) The board shall have authority to prohibit:
- 15 (a) Land disposal of any hazardous waste; and
- 16 (b) Storage of any hazardous waste prohibited from land disposal, un-
- 17 less such storage is solely for the purpose of the accumulation of such
- 18 quantities of hazardous waste as are necessary to facilitate proper re-
- 19 covery, treatment or disposal.

20 SECTION 6. That Section 39-4409, Idaho Code, be, and the same is hereby
 21 amended to read as follows:

22 39-4409. PERMIT REQUIREMENTS FOR HAZARDOUS WASTE TREATMENT, STORAGE,
 23 OR DISPOSAL FACILITIES. (1) No person shall construct, operate, or modify a
 24 hazardous waste treatment, storage, or disposal facility or site without a
 25 permit from the department. The owner or operator of the facility or site
 26 rather than the builder shall be responsible for obtaining the permit. Per-
 27 mits may contain such conditions necessary to protect human health and en-
 28 vironment. The board may exempt classes or categories of hazardous waste
 29 treatment, storage, or disposal facilities from the permit requirement if
 30 the exemption is in the public interest and consistent with RCRA require-
 31 ments. The fact that a class or category of such facilities is not required
 32 to obtain a federal permit shall be persuasive evidence that an exemption is
 33 in the public interest.

34 (2) Interim status granted by RCRA or a permit issued by the United
 35 States environmental protection agency prior to the date that the state pro-
 36 gram is authorized by the administrator of that agency shall be adopted by
 37 the department as a state granted interim status or as a state granted permit
 38 until the department issues a new state permit. The board may adopt such
 39 rules and regulations as necessary to:

- 40 (a) Allow other facilities to qualify for interim status;
- 41 (b) Require existing interim status surface impoundments, new units,
- 42 replacement of existing units and lateral expansions of existing in-
- 43 terim status facilities to comply with all regulations which apply to
- 44 new facilities; and
- 45 (c) Provide for the termination of interim status.
- 46 (3) The board shall promulgate rules and regulations establishing the
- 47 terms and conditions for issuing permits to the described facilities and
- 48 sites. The rules and regulations shall provide for, but not be limited to:

1 (a) Standards and procedures for the safe operation and maintenance of
2 the facilities and sites;

3 (b) Education and training qualifications of personnel at the facili-
4 ties and sites;

5 (c) Contractual commitment or consent to each facility or site from all
6 holders of interests in the real property committed to that facility or
7 site;

8 (d) Monetary assurances in such form and amount as are necessary for ef-
9 fective management, maintenance, and monitoring of the facilities and
10 sites during and after operation;

11 (e) Evidence of financial responsibility for corrective action on-site
12 and off-site;

13 (f) Liability insurance in such form and amount as is necessary to com-
14 pensate for potential damages caused by the facilities and sites; pro-
15 vided, that liability insurance shall not be required in the event that
16 liability insurance is not required by the federal regulations adopted
17 pursuant to the RCRA;

18 (g) Emergency equipment and emergency response plans appropriate to
19 the facilities and sites;

20 (h) Public participation in the permitting process consistent with 42
21 U.S.C. section 6974(b).

22 (4) Permits shall be issued for a period not to exceed ten (10) years or
23 the maximum period allowed under RCRA, whichever is greater. However, per-
24 mits may be reviewed at least every five (5) years and modified as necessary
25 to take into account changes in this chapter or regulations promulgated pur-
26 suant to it thereto and improvements in technology. ~~Permits issued to haz-~~
27 ~~ardous waste facilities and sites by the department prior to the effective~~
28 ~~date of this chapter shall be reissued to conform with the provisions of this~~
29 ~~chapter and the rules and regulations promulgated under this chapter.~~

30 (5) Any permit issued ~~after the effective date of this provision~~
31 pursuant to this chapter shall require corrective action to be taken on-site
32 and off-site for all releases of hazardous waste or constituents, from any
33 solid waste management unit at the treatment, storage, or disposal facility
34 seeking the permit, regardless of the time when the waste was placed in such
35 unit. ~~Permits issued from November 8, 1985, until the effective date of this~~
36 ~~provision shall be reissued to conform with this provision.~~

37 (6) Any permit issued ~~under~~ pursuant to this section may be revoked by
38 the director pursuant to the provisions of section 39-4413, Idaho Code, if
39 the permitted party fails to comply with the terms and conditions of the per-
40 mit, this chapter, or the rules and regulations promulgated ~~under this chap-~~
41 ~~ter~~ pursuant thereto.

42 (7) The department may issue a variance from the requirements of the
43 rules and regulations promulgated under this section, if, in the judgment
44 of the director, application of the requirements would cause unreasonable
45 hardship and the granting of a variance would not be harmful to the public in-
46 terest or inconsistent with RCRA requirements. A variance shall not exceed
47 ~~one (1) year~~ three (3) years in duration and may be renewed or extended only
48 after the department provides public notice and an opportunity for public
49 comment.

(8) (a) The director of the department may issue a research, development, and demonstration permit for any hazardous waste treatment technology or process for which permit standards for such experimental activity have not been promulgated. Any such permit shall include such terms and conditions as will ~~assure~~ ensure protection of human health and the environment. Such permits shall:

1. Provide for the construction of such facilities, as necessary, and for operation of the facility for not longer than one (1) year (unless renewed as provided below); and

2. Provide for the receipt and treatment by the facility of only those types and quantities of hazardous waste which the director deems necessary for purposes of determining the efficiency and performance capabilities of the technology or process and the effects of such technology or process on human health and the environment; and

3. Include such requirements as the director deems necessary to protect human health and the environment (including, but not limited to, requirements regarding monitoring, operation, insurance or bonding, financial responsibility, closure, and remedial action); and

4. Include such requirements as the director deems necessary regarding testing and providing of information to the director with respect to the operation of the facility.

(b) The director may apply the criteria set forth in paragraph (a) of this subsection in establishing the conditions of each permit without separate establishment of regulations implementing such criteria.

(c) For the purpose of expediting review and issuance of permits under this subsection, the director may, consistent with the protection of human health and the environment, modify or waive permit application and permit issuance requirements established in the general permit regulations except that there may be no modification or waiver of regulations regarding financial responsibility (including insurance) or of applicable public participation procedures.

(d) The director may renew a research, development and demonstration permit which has been issued pursuant to this subsection. The renewal term shall be no longer than one (1) year. A permit shall not be renewed more than three (3) times.

SECTION 7. That Section 39-4411, Idaho Code, be, and the same is hereby amended to read as follows:

39-4411. RECORDS -- REPORTING -- MONITORING. (1) Pursuant to the provisions of section 39-4405, Idaho Code, the board shall adopt, and amend as necessary, such rules relating to records, reporting, and monitoring as may be needed to achieve the purposes of this chapter. These rules may include, but shall not be limited to, prescribing procedures and requirements for:

- (a) The establishment, maintenance, and format of records and reports;
- (b) The submittal of records and reports;
- (c) The taking of samples and the performing of tests and of analyses;
- (d) The use of approved monitoring methods and techniques;

(e) The installation, calibration, use, and maintenance of monitoring equipment; and

(f) The provision of relevant information to the department.

(2) Sixty (60) days after promulgation of the criteria and lists specified under section 39-4407, Idaho Code, and the rules required under section 39-4405, Idaho Code, and subsection (1) of this section, the generation, transportation, treatment, storage, or disposal of a hazardous waste in this state by any person without reporting such activity to the department as required by the rules issued pursuant to subsection (1) of this section shall be unlawful.

(3) Information obtained by the department or by agents, contractors, or other representatives of the department, under any provisions of this chapter, shall be subject to disclosure according to chapter 1, title 74, Idaho Code.

(4) ~~Effective January 1, 1996, each~~ Each generator shall, at the discretion of the director, no later than ~~thirty (30) days after the end January 31~~ of each calendar year, submit a written annual report to the department including the following information:

(a) The types and quantities of hazardous wastes generated;

(b) The types and quantities of such wastes shipped for treatment and disposal by landfilling or other means of disposal;

(c) The types and quantities of such wastes remaining in storage at the end of the reporting period;

(d) Whether such wastes are destined for disposal or treatment in this state or whether such wastes are destined for disposal or treatment outside this state.

(5) ~~Effective January 1, 1996, the~~ The operator of each commercial hazardous waste disposal facility or site in the state shall, no later than ~~thirty (30) days after the end January 31~~ of each calendar year, submit a written annual report to the department providing information on the types and quantities of wastes received which were generated in Idaho, and information on the types and quantities of wastes received which were generated in other states.

(6) Prior to March 1 of each year the department shall submit a report to the governor and the legislature detailing:

(a) ~~the~~ The types and quantities of hazardous wastes generated in this state, ~~the;~~

(b) The types and quantities of such wastes shipped for treatment and disposal by landfilling or other means of disposal, ~~the;~~

(c) The types and quantities of such wastes remaining in storage at the end of the most recent reporting period; and

(d) ~~the~~ The types and quantities of hazardous waste generated outside this state and shipped into this state for storage or disposal.

SECTION 8. That Section 39-4412, Idaho Code, be, and the same is hereby amended to read as follows:

39-4412. INSPECTIONS -- RIGHT OF ENTRY. (1) All inspections and searches conducted under the authority of this chapter shall be performed in conformity with the prohibitions against unreasonable searches and seizures contained in the fourth amendment to the constitution of the United States

1 and article I, section 17, of the constitution of the state of Idaho. The
 2 state shall not, under the authority granted by this chapter, conduct war-
 3 rantless administrative searches of private property in the absence of
 4 either consent from the property owner or occupier or exigent circumstances
 5 such as a public health or environmental emergency.

6 (2) For the purposes of developing or enforcing any provision of this
 7 chapter or any rule or regulation authorized by this chapter, any duly autho-
 8 rized state employee or representative may, upon presentation of appropri-
 9 ate ~~credentials~~ state identification, at any reasonable time:

10 (a) Enter upon any private or public property where hazardous wastes
 11 are or have been generated, transported, treated, stored, or disposed
 12 of to inspect and to secure samples of such wastes, their containers,
 13 and their labels;

14 (b) Enter into any aircraft, vehicle, vessel, rail car, trailer, van,
 15 or other means of conveyance where hazardous wastes are or have been
 16 contained to inspect and to secure samples of such wastes, their con-
 17 tainers, and their labels;

18 (c) Enter any private or public property, or means of conveyance, where
 19 records, reports, information, or test results relating to the gener-
 20 ation, transportation, treatment, storage, or disposal of hazardous
 21 wastes exist to inspect and copy such documents.

22 (3) Upon request by an authorized agent of a property owner or facil-
 23 ity operator, the department shall provide the property owner or facility
 24 operator with a receipt for samples taken and a copy of sample analysis. Du-
 25 plicate samples shall similarly be provided upon request if the requesting
 26 party agrees to have the samples analyzed and to share the results of the
 27 analysis with the department.

28 (4) The right of entry of a duly authorized state employee or represen-
 29 tative shall not be subject to the waiver of any potential tort liability of
 30 the facility owner or operator. The right of entry of a duly authorized state
 31 or health district employee shall not be subject to any confidentiality re-
 32 quirements other than those specified in section 39-4411(3), Idaho Code, and
 33 chapter 1, title 74, Idaho Code. The right of entry of a private contrac-
 34 tor working in a representative capacity for the department may, however,
 35 be made subject to additional confidentiality requirements so long as those
 36 requirements do not interfere unreasonably with the development of informa-
 37 tion by the department or the transmission of information from the contrac-
 38 tor to the department or the United States environmental protection agency.

39 (5) Any magistrate or district court judge is authorized to issue an ad-
 40 ministrative search warrant upon a request from the director describing rea-
 41 sonable cause for issuance of the warrant or the existence of a reasonable
 42 program of inspection.

43 SECTION 9. That Chapter 44, Title 39, Idaho Code, be, and the same is
 44 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 45 ignated as Section 39-4433, Idaho Code, and to read as follows:

46 39-4433. SITING LICENSE REQUIRED -- EXEMPTIONS. (1) No person shall
 47 commence construction of or undertake any major modification of a commercial
 48 hazardous waste facility or any on-site land disposal facility for wastes
 49 listed in section 201(d) (2) and (e), as modified by section 209 of the haz-

ardous and solid waste amendments of 1984, without a siting license issued by the director.

(2) A permit shall not be issued pursuant to section 39-4409, Idaho Code, unless the applicant has been issued a site license by the director.

(3) The owner or operator of the facility or site, rather than a contractor or other third-party agent thereof, shall be responsible for obtaining the siting license.

(4) Facilities exempted from permitting pursuant to the provisions of section 39-4409, Idaho Code, shall not require a license under the provisions of this chapter.

(5) The director may exempt a facility from the requirement to obtain a siting license if the director determines that the exemption is in the public interest and is consistent with state and federal law.

(6) A hazardous waste facility that was in existence on July 1, 1985, shall not be subject to the provisions of this chapter unless a major modification is being proposed to such facility.

SECTION 10. That Chapter 44, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-4434, Idaho Code, and to read as follows:

39-4434. SITING LICENSE APPLICATION AND FEE. (1) An application for a siting license shall include:

(a) The name and address of the applicant;

(b) The location or proposed location of the hazardous waste facility;

(c) Engineering or hydrogeologic information demonstrating compliance with the technical criteria required by section 39-4435, Idaho Code, if applicable;

(d) A description of the types of activities and wastes that are proposed to be handled at the facility;

(e) Information showing that harm to scenic, historic, cultural, or recreational values is not substantial or that it can be mitigated;

(f) Information showing that the risk and impact of accident during transport of hazardous waste is not substantial or that it can be mitigated;

(g) Information showing that the impact on local government is not adverse regarding health, safety, cost, and consistency with local planning and existing development or that it can be mitigated; and

(h) The fee required by this section.

(2) The director shall establish a sliding fee scale for determining the requisite siting license application fee.

(a) The scale shall be based on the cost to the department for reviewing the siting license application and various site-specific characteristics, including the site size, projected waste volume, and hydrogeologic characteristics surrounding the site.

(b) The fee shall not exceed seven thousand five hundred dollars (\$7,500).

(c) Fees received pursuant to this section may be expended by the director to pay the actual, reasonable, and necessary costs incurred by the department in acting on a siting license application.

(3) The director may promulgate rules, subject to legislative approval and in compliance with chapter 52, title 67, Idaho Code, to implement and administer the provisions of this section.

SECTION 11. That Chapter 44, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-4435, Idaho Code, and to read as follows:

39-4435. MINIMUM SITING CRITERIA FOR HAZARDOUS WASTE FACILITIES. (1) A new hazardous waste facility shall not be sited:

(a) Where:

(i) The seasonal high depth of ground water, beneath the proposed site, is less than one hundred (100) feet below the lowest point of disposal. Perched saturated zones may be exempt from exclusionary criteria if it can be demonstrated that the saturated zone has no economic or consumptive usable purpose;

(ii) The thickness of fine-grained unconsolidated sediments above the water table is less than twenty-five (25) feet; or

(iii) The depth to fractured rock is less than one hundred (100) feet below the lowest point of disposal; or

(b) Within:

(i) Two thousand five hundred (2,500) feet of surface water bodies;

(ii) One thousand (1,000) feet of existing public, private, or irrigation water supply wells, unless it can be demonstrated that natural hydrogeologic barriers isolate the site location from the aquifer;

(iii) A five hundred (500) year floodplain;

(iv) Areas that are in close proximity to active fault zones or other tectonically active or unstable areas; or

(v) Areas overlying any subsurface mining.

(2) A new hazardous waste disposal or incineration facility shall not be sited within:

(a) Five thousand (5,000) feet of any off-site residential structure that is routinely occupied at least eight (8) hours per day;

(b) Three (3) miles of schools, airports, hospitals, or churches; or

(c) Three (3) miles from a population center greater than one hundred fifty (150) people.

(3) Incineration facilities may not be located in a class I area designated in accordance with section 162 or 164 of the federal clean air act.

(4) An area of at least five hundred (500) feet surrounding the active disposal location portion of the site shall be provided as an inactive buffer zone.

SECTION 12. That Chapter 44, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-4436, Idaho Code, and to read as follows:

39-4436. DUTIES OF DIRECTOR UPON RECEIPT OF SITING LICENSE APPLICATION. (1) Within forty-five (45) days of receiving an application, the director shall determine whether the application is complete and complies with

1 the technical criteria required by section 39-4435, Idaho Code, if applica-
2 ble. If the application is not complete, the director shall notify the ap-
3 plicant in writing and identify the deficiencies.

4 (2) Once the director determines an application is complete, the direc-
5 tor shall:

6 (a) Notify the applicant of such determination;

7 (b) Establish a site review panel pursuant to section 39-4437, Idaho
8 Code;

9 (c) Notify the city and county in which the hazardous waste facility is
10 or is proposed to be located, the state fire marshal, the director of the
11 department of fish and game, the director of the Idaho state police, the
12 relevant divisions within the department, and other appropriate state
13 and federal agencies. The notice shall describe the review process and
14 expected schedule based on the complexity of the application; and

15 (d) Publish a notice that an application has been received by the de-
16 partment in a newspaper of general circulation in the county and immedi-
17 ate vicinity of the hazardous waste facility or proposed facility. The
18 notice shall include:

19 (i) A map indicating the location or proposed location of the haz-
20 ardous waste facility;

21 (ii) A description of the proposed action;

22 (iii) A brief description of the review, participation, and ap-
23 proval process by which the application may be approved and a sit-
24 ing license may be granted; and

25 (iv) The location where the complete application package may be
26 reviewed.

27 (3) Upon official establishment of the panel, as provided for by sec-
28 tion 39-4437, Idaho Code, the director shall:

29 (a) Submit such information as the panel may require to conduct its re-
30 view and provide its recommendation to the director;

31 (b) Within sixty-five (65) days, submit preliminary findings that rec-
32 commend approval or rejection of the application and, if approval is rec-
33 ommended, contain preliminary conditions for the license to ensure the
34 facility's compliance with applicable law, which may be more stringent
35 than such provisions; and

36 (c) Make department staff available to assist the panel in carrying out
37 its duties.

38 (4) Within thirty (30) days of receiving the panel's recommendation
39 pursuant to section 39-4438, Idaho Code, the director shall make a final
40 decision on the application. The director shall approve the application and
41 issue a siting license, with appropriate conditions, if any, if the director
42 determines that:

43 (a) The technical criteria required by section 39-4435, Idaho Code, are
44 met, if applicable;

45 (b) The harm to scenic, historic, cultural, or recreational values is
46 not substantial or that it can be mitigated by appropriate license con-
47 ditions;

48 (c) The risk and impact of accident during transportation of hazardous
49 waste is not substantial or that it can be mitigated with appropriate
50 license conditions;

(d) The impact on local government is not adverse regarding health, safety, cost, and consistency with local planning and existing development or that it can be mitigated with appropriate license conditions; and

(e) No other major concerns have been raised by the panel regarding public health or the environment that cannot be mitigated by special license conditions.

(5) Any person aggrieved by a decision of the director pursuant to this chapter may, within twenty-eight (28) days and after all of this chapter's remedies have been exhausted, seek judicial review pursuant to chapter 52, title 67, Idaho Code.

SECTION 13. That Chapter 44, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-4437, Idaho Code, and to read as follows:

39-4437. SITE REVIEW PANELS -- ESTABLISHMENT AND ORGANIZATION. (1) A site review panel shall be established pursuant to this section to review each siting license application received by the department, ensure public input and involvement in the application and licensing process, and provide recommendations to the director regarding the director's final decision.

(2) (a) The panel shall consist of ten (10) members to be appointed as follows:

(i) One (1) member shall be the director or the director's authorized representative;

(ii) One (1) member shall be the director of the Idaho transportation department or the director's authorized representative;

(iii) One (1) member shall be the director of the Idaho department of water resources or the director's authorized representative;

(iv) Three (3) members shall be public members appointed by the director. Of such members, one (1) shall be a geologist or hydrologist, one (1) an engineer, and one (1) a representative of industries that generate hazardous waste;

(v) Two (2) members shall be appointed by the city council of the city located closest to or in which the hazardous waste facility is located or is proposed to be located. At least one (1) of such members shall be an actual resident of the city; and

(vi) Two (2) members shall be appointed by the board of commissioners of the county in which the facility is located or is proposed to be located. Both members shall be actual residents of the county.

(b) The director or the member appointed as the director's representative shall be the chair of each panel established pursuant to this section. The chair shall be a nonvoting member of the panel except when the chair's vote is necessary to break an otherwise tied vote.

(c) Six (6) of the ten (10) members shall constitute a quorum for the purposes of conducting business and executing the panel's duties.

(d) Members of the panel who are not state employees shall be entitled to receive reimbursement as provided in section 59-509(b), Idaho Code.

(e) All meetings of the panel shall be conducted pursuant to the state open meetings law, chapter 2, title 74, Idaho Code.

1 (3) (a) Once the director determines an application is complete, the di-
2 rector shall:

3 (i) Appoint the three (3) public members of the panel;

4 (ii) Notify the director of the department of transportation and
5 the director of the department of water resources of the applica-
6 tion and of their obligation to serve, or appoint a representative
7 to serve, on the panel; and

8 (iii) Notify the appropriate city council and board of county
9 commissioners of the application and instruct them to appoint the
10 necessary representatives to the panel.

11 (b) Within thirty (30) days of the director's notification, the re-
12 quired appointments shall be made and the director of the department of
13 transportation, the director of the department of water resources, the
14 city council, and the board of county commissioners shall notify the
15 director of their respective selections.

16 SECTION 14. That Chapter 44, Title 39, Idaho Code, be, and the same is
17 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
18 ignated as Section 39-4438, Idaho Code, and to read as follows:

19 39-4438. DUTIES OF SITE REVIEW PANEL. (1) The panel's primary respon-
20 sibility shall be to consider the concerns and objections submitted by the
21 public. The panel shall facilitate efforts to provide that the concerns and
22 objections are mitigated by proposing additional conditions for licensure
23 to the director. Such conditions may, among other objectives:

24 (a) Integrate the provisions of the city or county ordinances, permits,
25 or requirements; and

26 (b) Include measures to mitigate public concerns for:

27 (i) The establishment or major modification of a hazardous waste
28 facility; and

29 (ii) On-site disposal of wastes listed in section 201(d) (2) and
30 (e) as modified by section 209 of the hazardous and solid waste
31 amendments of 1984.

32 (2) Within thirty (30) days of the panel's official establishment, the
33 panel shall conduct its first meeting where it shall:

34 (a) Establish a timetable for the review of an application, public par-
35 ticipation in the process, and submission of a recommendation to the di-
36 rector; and

37 (b) Set a date for a public hearing. Notice of the hearing shall be pub-
38 lished at least thirty (30) days before such hearing. Such notice shall
39 be published in a newspaper of general circulation in the county and im-
40 mediate vicinity of the facility or proposed facility. The notice shall
41 include:

42 (i) A map indicating the location or proposed location of the haz-
43 ardous waste facility;

44 (ii) A description of the proposed action;

45 (iii) Information regarding the time, place, and location of the
46 public hearing;

47 (iv) Information on how to submit public comment; and

48 (v) The location where the complete application package may be
49 reviewed.

1 (3) The panel shall accept written comment for at least thirty (30) days
 2 prior to the public hearing and shall continue to accept written comment for
 3 fifteen (15) days after the public hearing date. Oral comment shall be pro-
 4 vided for by the panel at the public hearing.

5 (4) When reviewing an application, the panel shall, among other things,
 6 consider:

7 (a) The risk and impact of accident during the transportation of haz-
 8 ardous waste;

9 (b) The risk of fires or explosions from improper treatment, storage,
 10 or disposal methods;

11 (c) The impact on local units of government in terms of health, safety,
 12 and cost;

13 (d) Whether the application is consistent with local planning and ex-
 14 isting development;

15 (e) City and county ordinances, permits, or other requirements and
 16 their potential relationship to the proposed hazardous waste facility;

17 (f) The nature of the probable environmental impact;

18 (g) What conditions, if any, would eliminate or mitigate concerns,
 19 risks, and impacts;

20 (h) The director's preliminary recommendation and associated condi-
 21 tions, if any such conditions are provided; and

22 (i) The public comment received.

23 (5) Within thirty (30) days of the end of the public comment period, the
 24 panel shall submit its recommendation to the director. The panel shall rec-
 25 commend that the application be approved and the license be issued or that the
 26 application and license be denied.

27 (a) If the panel recommends approval, it shall include recommended
 28 conditions, which may be the same as, different than, or in addition to
 29 the preliminary conditions submitted by the director. If such condi-
 30 tions are different or additional conditions, the panel shall provide a
 31 statement explaining the need for the condition.

32 (b) If the panel recommends denial, the panel shall provide a statement
 33 explaining the reasons for its recommended denial.

34 SECTION 15. That Chapter 44, Title 39, Idaho Code, be, and the same is
 35 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 36 ignated as Section 39-4439, Idaho Code, and to read as follows:

37 39-4439. LOCAL RESTRICTIONS ON HAZARDOUS WASTE FACILITIES. An ordi-
 38 nance, permit requirement, or other requirement of a city or county shall
 39 not prohibit the construction of a hazardous waste facility in that city or
 40 county.

41 SECTION 16. That Chapter 44, Title 39, Idaho Code, be, and the same is
 42 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 43 ignated as Section 39-4440, Idaho Code, and to read as follows:

44 39-4440. CERTIFICATION OF CITY, COUNTY, OR HEALTH DISTRICT. (1) The
 45 director may certify a city, county, or health district to administer and
 46 enforce portions of this chapter to the extent consistent with maintaining

1 authorization of the state's hazardous waste management program pursuant to
2 chapter 44, title 31, Idaho Code.

3 (2) The director may rescind certification upon the request of the cer-
4 tified city, county, or health district or after reasonable notice and hear-
5 ing if the director finds that a city, county, or health district is not ad-
6 ministering and enforcing the provisions of this chapter as required.

7 (3) Certification procedures may be established by rule, subject to
8 legislative approval.

9 SECTION 17. That Chapter 44, Title 39, Idaho Code, be, and the same is
10 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
11 ignated as Section 39-4441, Idaho Code, and to read as follows:

12 39-4441. REMEDY FOR DEVALUATION OF PROPERTY CAUSED BY APPROVED FACIL-
13 ITY. (1) Before construction of a hazardous waste facility, but in no case
14 later than nine (9) months after approval of a site license for such facil-
15 ity, any owner or user of real property adversely affected by approval may
16 bring an action in a district court of competent jurisdiction against the
17 owner of the proposed facility.

18 (2) If a court determines that the planned construction and operation
19 of the facility will result in the devaluation of the plaintiff's property
20 or will otherwise interfere with the plaintiff's rights in the property,
21 the court shall order the facility's owner to compensate the plaintiff in an
22 amount equal to the value of the plaintiff's loss.

23 (3) The remedy provided by this section shall be in addition to other
24 remedies provided by law for property owners or users aggrieved by the pro-
25 posed construction and operation of a hazardous waste facility.

26 (4) Nothing in this chapter shall prevent a property owner or user ag-
27 grievd by the construction and operation of a facility from seeking damages
28 that result from a subsequent modification of the design or operation of the
29 facility, but such damages are limited to the incremental damage that re-
30 sults from such modification. Any action for such damages under this section
31 shall be brought within nine (9) months after the siting license for modifi-
32 cation of the design or operation of the facility is approved.

33 (5) For the purpose of assessing damages, the value of the rights af-
34 fected shall be fixed at the date the siting license is approved and the ac-
35 tual value of the right at that date shall be the basis for the determination
36 of the amount of damage suffered, and no improvements to the property subse-
37 quent to the date of approval of the plans shall be included in the assess-
38 ment of damages. For any subsequent modification of a facility, the value is
39 fixed at the date of approval of the siting license.

40 (6) The owner or operator of a proposed facility may at any time be-
41 fore an award of damages abandon the construction or operation of the facil-
42 ity or any modification thereof and cause the action to be dismissed. As a
43 condition of dismissal, the facility's owner or operator shall compensate
44 the plaintiff for any actual damage sustained as a result of construction or
45 operation of the facility before abandonment together with court costs and
46 reasonable attorney's fees.

47 (7) Nothing in this chapter shall prevent a court from enjoining any ac-
48 tivity at a hazardous waste facility that is outside of, or not in compli-

1 ance with, the terms and conditions of an approved hazardous waste opera-
2 tions permit issued pursuant to section 39-4409, Idaho Code.

3 SECTION 18. That Section 39-7402A, Idaho Code, be, and the same is
4 hereby amended to read as follows:

5 39-7402A. EXCLUDED FACILITIES. This chapter shall not apply to any
6 facility subject to the provisions of subtitle C of RCRA, or the hazardous
7 waste management act of 1983, as amended ~~(section 39-4401, et seq., Idaho~~
8 ~~Code) or the state hazardous waste facility siting act, as amended (section~~
9 ~~39-5801, et seq., Idaho Code)~~, chapter 44, title 39, Idaho Code.

10 SECTION 19. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.